a clear, concise list of:

1. **What each defendant, in their *Reply Brief*, says you "missed" or "conceded" from your Consolidated Opposition (ECF No. 38).**
2. If possible, suggestions for how you could frame a defense/response to those specific points, particularly using your Ninth Amendment "Disparagement Doctrine" or other existing arguments.

Let's go through each defendant's reply.

I. DDA Portlock's Reply (ECF No. 43)

What DDA Portlock Says You Missed/Got Wrong in Your Opposition (ECF No. 38):

1. **Nature of Alleged Fabricated Evidence:**
   - **Portlock's Reply (ECF No. 43, p. 2):** "Plaintiff alleges that DDA Portlock fabricated evidence, however in support of those allegations, he cites statements made in court by DDA Portlock resulting in the continuance of plaintiff's criminal trial... statements made in court by the prosecutor acting as an advocate in a judicial proceeding qualify for absolute immunity."
   - **Implication:** She's saying your example of "fabricated evidence" (statements in court about COVID leading to continuance) actually *supports* her claim to absolute immunity because it was an in-court advocacy function. She implies you misunderstand what falls outside immunity.

2. **Understanding of Conspiracy/Collusion:**
   - **Portlock's Reply (ECF No. 43, p. 2):** "At times plaintiff complains about ex parte communication between DDA Portlock and the judge, and at other times he includes his attorney as a 'conspirator'... It is unclear how that constitutes conspiracy if the court is not also colluding... facts supporting plaintiff's allegation of collusion or conspiracy are conflicting and confusing."
   - **Implication:** She argues your conspiracy allegations are unclear, internally inconsistent, and don't properly articulate a conspiracy that would defeat her immunity.

3. **Failure to Disclose Exculpatory Evidence (Absolute Immunity):**
   - **Portlock's Reply (ECF No. 43, p. 2):** "Plaintiff argues that DDA Portlock failed to disclose exculpatory evidence, but again, even if that did occur, she has absolute immunity. See *Imbler v. Pachtman*..."

- **Implication:** She asserts that *Imbler* grants absolute immunity even for alleged Brady violations (failure to disclose).

4. **Witness Tampering Allegations (No Harm Alleged, Within Immunity):**
    - **Portlock's Reply (ECF No. 43, pp. 2-3):** "Plaintiff's allegations involving an alleged witness... are also nonspecific and unclear... plaintiff fails to allege how he was harmed... Even if the witness did feel pressured... DDA Portlock's actions are fully immune from liability." She cites *Genzler* for witness interviews being advocacy-related.
    - **Implication:** Your witness tampering claims are vague, don't show harm to *you*, and witness interviews are within prosecutorial (advocacy) function.

5. **Misapplication of Case Law (e.g., *Rose v. Bartle*):**
    - **Portlock's Reply (ECF No. 43, p. 3, fn. 1):** "It should be noted that plaintiff cites to *Rose v. Bartle*... to support his position that a conspiracy might overcome prosecutorial immunity... that is an inaccurate representation... *Rose* supports DDA Portlock's position."
    - **Implication:** You're misinterpreting or misapplying case law regarding conspiracy and immunity.

- **For Fabricated Evidence/COVID Lie:** "DDA Portlock mischaracterizes Plaintiff's allegation. The claim is not merely about in-court statements, but that these statements were part of a *pre-determined conspiracy with Plaintiff's own advisor and allegedly the judge to deliberately fabricate a false medical pretext (COVID-19) to subvert Plaintiff's right to a speedy trial and due process.* (SAC ¶73, 90-91; ECF No. 38, p. 61). Such knowing presentation of fabricated information, especially in alleged collusion with other court officers to achieve an improper purpose, is not a protected advocative function but a corruption of the judicial process falling outside immunity. *See Koubriti v. Convertino.* The Ninth Amendment Disparagement Doctrine posits that such abuse of process to deny fundamental rights is precisely the kind of overreach immunity should not shield."

- **For Conspiracy Clarity:** "The conspiracy involved DDA Portlock, advisor Medina, and alleged judicial complicity in presenting false COVID information to delay trial (SAC ¶73; ECF No. 38, p.61). Separately, Portlock's actions in allegedly pressuring a witness and suppressing body camera footage (SAC ¶62, 67) represent individual misconduct and potential conspiracy with WLPD to obstruct justice. These are distinct but related components of the overall deprivation of Plaintiff's rights, well within the pleading standards. The Ninth Amendment Disparagement Doctrine highlights how such *coordinated efforts*, even if involving different sets of actors for different deprivations, contribute to a systemic denial of justice."

- **For *Imbler* and Exculpatory Evidence:** "*Imbler*'s protection does not extend to prosecutors who step outside their advocacy role to deliberately fabricate evidence or conspire to suppress evidence, especially when these actions are part of a broader scheme to deny constitutional rights, as alleged here. The alleged DHS seal manipulation to block access to known exculpatory body-cam footage (SAC ¶67; ECF No. 38, p.21, 61) is an administrative/investigative act of concealment, not advocacy."

- **For Witness Tampering:** "The allegation is not merely 'witness contact' but *coercive pressure regarding child custody to compel a key exculpatory witness to leave the country* (SAC ¶62; ECF No. 38, p.57), which directly harmed Plaintiff by depriving him of that witness's live, exculpatory testimony. This is investigative misconduct, not protected advocacy. The resulting inability to present a full defense is clear harm."

- **For Case Law:** "Plaintiff respectfully submits that *Rose v. Bartle*, among other authorities, supports the principle that when prosecutors engage in conspiracies that step outside their quasi-judicial role, immunity may not apply. The alleged actions here, particularly the conspiracy to fabricate evidence before the court, fall into that category."

II. County Defendants' Reply (ECF No. 42) - *We've covered this one based on pages 1-3. The key "misses" they allege are: failing to respond to the improper removal/repetitive lawsuit argument; misapplying equitable tolling principles under Oregon law for §1983 claims; and not sufficiently justifying why amendments ignore the Court's prior order.*

- **For Improper Removal/Repetitive Lawsuit:** "The County Defendants wrongly characterize this federal action as a mere 'repetitive lawsuit' or improper removal (ECF No. 42, p.2). As detailed in Plaintiff's Opposition (ECF No. 38, p.15) and supported by the Ninth Amendment Disparagement Doctrine, the state court proceedings were systematically obstructed and failed to provide a forum for adjudicating Plaintiff's federal constitutional rights, particularly due to [briefly mention alleged state court collusion/obstruction]. This federal action is not a duplication but a necessary pursuit of vindication in the constitutionally designated forum for such rights, especially when the state forum proved inadequate due to alleged systemic disparagement of Plaintiff's ability to obtain justice." (Also cite your state court dismissal being without prejudice *at your request to pursue federal claims*).

- **For Oregon Tolling Rules:** "While Oregon tolling rules are relevant, Defendants ignore that federal equitable principles, including those stemming from the Ninth Amendment's protection against the disparagement of retained rights, can and should inform the application of state tolling rules in §1983 actions, especially when extreme hardship, disability, and active obstruction by state actors are alleged (ECF No. 38, pp. 34-40). Defendants' assertion that Plaintiff's 2022 state court filing negates all tolling (ECF No. 42, p.3) disregards the distinct and subsequent federal court access barriers (e.g., lack of ID caused by defendants' actions, rejected federal filings) and the later discovery of the full scope of the alleged conspiracy (SAC ¶4, p.9; ECF No. 38, p.53). The right to access federal court is itself a federal right that cannot be unduly burdened by a narrow application of state tolling rules when defendant-created obstacles are manifest."

- **For Ignoring Court's Amendment Order:** "Plaintiff's amendments (ECF Nos. 13, and SAC with ECF No. 17) were a good-faith attempt to present the full scope of interconnected constitutional violations by all responsible parties, an understanding that evolved as Plaintiff, pro se and disabled, uncovered further evidence of alleged systemic misconduct. Justice requires liberal amendment, particularly when, as argued under the Ninth Amendment Disparagement Doctrine, the defendants' alleged actions created the very complexity and hardship that necessitated clarification and inclusion of all culpable parties for a complete remedy. Plaintiff explicitly sought leave for the SAC (ECF No. 17), detailing these justifications."

III. West Linn Defendants' Reply (ECF No. 44)

What West Linn Says You Missed/Conceded in Your Opposition (ECF No. 38):

1. **Only Responded to Statute of Limitations (Conceded Other Bases):**
    - **West Linn's Reply (ECF No. 44, pp. 1-2, 6):** They claim you only addressed the statute of limitations and thus conceded their other arguments for dismissal (e.g., failure to state specific claims, issues with declaratory/injunctive relief, punitive damages).

2. **Conceded Violation of Court's Amendment Order:**
    - **West Linn's Reply (ECF No. 44, p. 5):** Claim you conceded violating the August 7, 2024 order and that FRCP 15(a)(2) doesn't excuse it without proper leave/consent, which you lacked.

3. **Conceded Proper Party (WLPD vs. City of West Linn):**

- **West Linn's Reply (ECF No. 44, p. 6):** State you conceded the WLPD should be substituted with the City.

4. **Failure to State Claims (Generally - Unsubstantiated/Conclusory):**
    - **West Linn's Reply (ECF No. 44, p. 6):** Reiterate that your complaint is rife with unsubstantiated and conclusory allegations.

- **For "Only Responded to SOL / Conceded Other Bases":** "West Linn Defendants incorrectly assert Plaintiff only addressed the statute of limitations (ECF No. 44, pp. 1-2). Plaintiff's Consolidated Opposition (ECF No. 38) provided extensive factual and legal argument on the sufficiency of his claims for false arrest (pp. 74-77), conspiracy (pp. 78-80), Monell liability (pp. 81-84), and deliberate indifference to medical needs (pp. 84-88) as they pertain to *all* similarly situated officer/municipal defendants, including West Linn. The Ninth Amendment Disparagement Doctrine further provides the overarching framework demonstrating the plausibility and gravity of these claims. While Plaintiff did not separately re-brief every individual claim against each defendant group to avoid exceeding word limits (for which leave was sought, ECF No. 38, p.12), the substantive arguments against dismissal for failure to state a claim were comprehensively made and apply fully to West Linn. Regarding specific relief like punitive damages, such relief is warranted given the alleged intentional and malicious nature of the constitutional violations, a core theme of Plaintiff's SAC and Opposition."

- **For Violating Amendment Order:** (Similar to County response) "Plaintiff's amendments were a good-faith effort by a pro se, disabled litigant facing defendant-created hardship to bring all culpable parties and claims before the Court for a complete resolution, especially as the interconnected nature of the alleged conspiracy became clearer. The alleged prior permission from West Linn counsel to move to federal court (Email, Ex. __) further suggests their current procedural objections lack merit. The Court's discretion under FRCP 15(a)(2) should be exercised in favor of justice, especially when viewed through the Ninth Amendment's protection against disparagement of fundamental rights through procedural technicalities."

- **For Proper Party:** "Plaintiff acknowledges that the 'City of West Linn' is the proper municipal defendant rather than the 'West Linn Police Department' and consents to such substitution, as this is a technical correction that does not affect the substance of the claims against the municipality for the actions of its officers. (ECF No. 38, p.69)."

- **For "Unsubstantiated/Conclusory" Allegations:** "West Linn's assertion that Plaintiff's claims are merely conclusory (ECF No. 44, p.6) disregards the extensive factual detail provided in the Second Amended Complaint (ECF No. [SAC ECF#], paras. __-__ detailing the 8-minute arrest, ignored exculpatory evidence, specific officer actions, policy changes) and Plaintiff's Opposition (ECF No. 38, pp. __-__). These allegations, which must be taken as true at this stage, plausibly state claims for relief. The Ninth Amendment Disparagement Doctrine further illuminates how these specific factual allegations form part of a larger, actionable pattern of constitutional deprivation."

Defendant Group: DDA Portlock (Based on ECF No. 43 - Reply, pp. 1-4)

{{DDA PORTLOCK'S ARGUMENT IN HER REPLY (ECF No. 43)}}	{{WHAT PORTLOCK'S REPLY CLAIMS/IMPLIES YOU MISSED OR GOT WRONG IN YOUR OPPOSITION (ECF No. 38)}}
1. Absolute Immunity for In-Court Statements (re: COVID/Continuance): "Plaintiff alleges that DDA Portlock fabricated evidence, however... he cites statements made in court... Despite plaintiff's attempts, statements made in court by the prosecutor acting as an advocate... qualify for absolute immunity." (ECF No. 43, p. 2)	Implies your characterization of these in-court statements as "fabricated evidence" falling *outside* immunity is legally incorrect because they were advocacy functions. Suggests you misunderstand the scope of immunity for in-court prosecutorial statements.
2. Conspiracy/Collusion Allegations Unclear & Conflicting: "At times plaintiff complains about ex parte communication between DDA Portlock and the judge, and at other times he includes his attorney as a 'conspirator'... It is unclear how that constitutes conspiracy if the court is not also colluding... facts supporting... collusion or conspiracy are conflicting and confusing." (ECF No. 43, p. 2)	Claims your explanation of the conspiracy in your Opposition is muddled, internally inconsistent, and fails to clearly articulate an actionable conspiracy that would defeat her immunity.
3. Absolute Immunity for Failure to Disclose Exculpatory Evidence: "Plaintiff argues that DDA Portlock failed to disclose exculpatory evidence, but again, even if that did occur, she has absolute immunity. See *Imbler v. Pachtman*..." (ECF No. 43, p. 2)	Asserts that your argument against immunity for alleged Brady violations is legally incorrect based on *Imbler*.
4. Witness Tampering Allegations are Nonspecific, Show No Harm, and Fall Within Immunity: "Plaintiff's allegations involving an alleged witness... are also nonspecific and	Claims your Opposition: (a) is too vague on "tampering," (b) doesn't show harm *to you*, and (c) incorrectly places witness interviews

unclear... plaintiff claims there was 'tampering'... plaintiff fails to allege how he was harmed... Even if the witness did feel pressured... DDA Portlock's actions are fully immune from liability." (ECF No. 43, pp. 2-3) Cites *Genzler* re: witness interviews.	(an advocacy-related function per *Genzler*) outside immunity.
5. Misapplication of Case Law (*Rose v. Bartle*): "*Rose v. Bartle*... plaintiff cites to support his position that a conspiracy might overcome prosecutorial immunity... that is an inaccurate representation... *Rose* supports DDA Portlock's position." (ECF No. 43, p. 3, fn. 1)	Claims your legal analysis of case law (specifically *Rose*) in your Opposition is flawed and that the case actually supports her immunity.
6. Plaintiff's Cited Examples of Non-Immune Conduct Don't Apply to Portlock: "In contrast to DDA Portlock's actions here, one of plaintiff's cited cases provides the following list of examples where a prosecutor's actions are not eligible for absolute immunity... These examples further illustrate how solidly DDA Portlock's work prosecuting plaintiff provides her absolute immunity..." (ECF No. 43, p. 3)	Implies that the examples you provided in your Opposition of actions *not* covered by immunity (giving legal advice to police, out-of-court statements, affidavits, warrantless wiretaps) are irrelevant because Portlock's alleged actions are different and fall *within* her prosecutorial role. Suggests you failed to show *her specific actions* fit the non-immune categories.

Defendant Group: County Defendants (Based on ECF No. 42 - Reply, pp. 1-3)

{{COUNTY DEFENDANTS' ARGUMENT IN THEIR REPLY (ECF No. 42)}}	{{WHAT COUNTY'S REPLY CLAIMS/IMPLIES YOU MISSED OR CONCEDED IN YOUR OPPOSITION (ECF No. 38)}}
1. Improper Removal/Repetitive Lawsuit (Violates 28 U.S.C. § 1441(a)): "Plaintiff's memorandum fails to respond to this argument, and by not responding, Plaintiff concedes this Court should dismiss this case because Plaintiff lacked authority to file this duplicative federal court action." (ECF No. 42, p. 2)	**Explicitly states you FAILED TO RESPOND and THEREFORE CONCEDED** their argument that your federal suit is an improper repetitive lawsuit/removal attempt.
2. Statute of Limitations Bars Claims / Equitable Tolling Arguments Fail: (ECF No. 42, pp. 2-3)	Claims your Opposition:
"...Plaintiff now apparently concedes that the applicable two-year limitation applies, but argues that the Court should rely upon equitable tolling..."	Suggests you conceded the base SOL but are now solely relying on tolling.
"Plaintiff's argument is misplaced because it simply fails to address equitable tolling for purposes of Section 1983 actions. Here, Plaintiff's Section 1983 action must follow Oregon tolling rules... There is no	**Claims you FAILED TO ADDRESS Oregon-specific tolling rules for §1983** and that there's no Oregon precedent supporting your equitable tolling argument in this context.

Oregon precedent applying equitable tolling in Section 1983 claims."	
"Accordingly, Plaintiff's citation to legal authority applying California state law or the Eleventh Circuit is misplaced."	Claims your **legal authority from other jurisdictions is irrelevant/misplaced.**
"Even if Oregon law permitted equitable tolling, there is no evidence showing Plaintiff could not have filed his lawsuit in federal court before the statute of limitations expired. In fact, Plaintiff established that he was able to timely bring his action by having brought his claims in Oregon state court on November 18, 2022."	Claims you **FAILED TO SHOW IMPOSSIBILITY of timely federal filing**, especially given your 2022 state court filing.
"Plaintiff has not and cannot explain how any alleged limitation did not prevent him from filing his original state court action in 2022, but only later in this court in 2024."	Claims you **FAILED TO EXPLAIN the discrepancy** between being able to file in state court (2022) versus the alleged inability to file timely in federal court.
3. Amended Complaints Ignore Court's Order (Regarding leave to amend - ECF No. 12): "...Plaintiff apparently concedes each of these arguments but contends that the County Defendants improperly 'elevate form over substance' and that the Court has 'broad discretion'..." (ECF No. 42, p. 3, lines 20-23, continuing to p.4)	Claims you **conceded violating the Court's order** but are now arguing for discretion/substance over form. (The reply would then go on in later pages to argue why your reasons are insufficient).

Defendant Group: West Linn Defendants (Based on ECF No. 44 - Reply, pp. 1-3)

{{WEST LINN DEFENDANTS' ARGUMENT IN THEIR REPLY (ECF No. 44)}}	{{WHAT WEST LINN'S REPLY CLAIMS/IMPLIES YOU MISSED OR CONCEDED IN YOUR OPPOSITION (ECF No. 38)}}
1. Failure to Respond to Several Dismissal Bases / Only Responded to Statute of Limitations: "Despite filing an overlength brief, Plaintiff failed to respond to several of City Defendant's bases for dismissal and appears to only respond to arguments regarding the statute of limitations." (ECF No. 44, p. 1, last para - p. 2, line 1)	**Explicitly states you FAILED TO RESPOND to several of their dismissal arguments** (e.g., specific claim deficiencies beyond SOL, declaratory/injunctive relief, punitive damages – these would be detailed in their MTD ECF No. 36 and later in their reply).
2. Statute of Limitations Bars Claims / Equitable Tolling Arguments Fail: (ECF No. 44, pp. 2-3)	Claims your Opposition:

"Plaintiff appears to concede his claims are subject to a two-year statute of limitations... Plaintiff argues that this statute was tolled for various reasons, however... there is no tolling provision applicable..."	Suggests you conceded the base SOL but your tolling arguments fail.
"As the forum state, in Oregon, equitable tolling is 'only available when circumstances outside the control of the affected party make it *impossible* to comply with a statute of limitations.'... Plaintiff's own arguments demonstrate as such – Plaintiff admits that he was able to file a complaint... in state court in November of 2022... This admission demonstrates that there was no barrier to Plaintiff's timely filing..."	**Claims your equitable tolling argument fails under Oregon's "impossibility" standard** because your 2022 state court filing shows it wasn't impossible for you to file.
"...his arguments related to disability and incarceration are without merit as well. Those factors were equally present in November of 2022, and ostensibly did not prevent him from being able to pursue his claims..."	Claims your arguments about **disability and incarceration as tolling reasons are without merit** because those conditions didn't stop your 2022 state filing.
(The reply would then continue on p.4+ to likely rebut your specific tolling theories like ORS 12.160, concealment, continuing violations, relation back, discovery rule, often by pointing back to your ability to file in state court in 2022 as evidence against these theories applying to your federal filing.)	(Anticipated) Would argue your specific tolling theories are defeated by the fact you *could* and *did* file a related case in state court, showing you were aware of core facts and able to act.

This format should give you a much clearer, direct "They said X in their reply about what I missed/conceded in my opposition" structure for each defendant group, based *only* on the actual reply brief excerpts you've provided. You'll then use your supplemental brief to counter these specific reply points, ideally with your Ninth Amendment Disparagement Doctrine as the overarching framework.

NOTES:

Okay, I understand. I will take notes, focusing on direct facts, dates, and explicit links

Understood. Concise notes. Focus on dates, facts, and direct links between defendants' actions, systemic issues, and your hardships. Output under 2000 tokens.

Notes: Documented Obstruction and Delays Caused by Defendants (Continued)

V. Early Probate Case Obstruction & AOB Claim Derailment (Jan 2021 - Rebecca Vance, Clackamas County Circuit Court, Case #: 20PB05750)

- **Initial Filing Barriers (Jan 19, 2021):** Plaintiff attempted to file documents (Summary Determination, Affidavits) for AOB claim in *Joanna Lee Bozian probate case*. Rebecca Vance (Probate Coordinator, Clackamas County Circuit Court) informed Plaintiff via email that "Pleadings cannot be filed by e-mail; original documents… must be filed in the Oregon Judicial Department File and Serve System or with the clerk's office." (Email from Rebecca Vance, Jan 19, 2021 12:50 PM, Ex. [need exhibit for this email chain]).
- **E-filing Issues & Lack of Funds:** Plaintiff expressed difficulty with e-filing ("e-file thing still won't load for me and I'm trying to do it all on a broken phone…") and inability to pay filing fees ("I don't have money to file the suit it's like $400 correct ? I know I can ask for it to be waived"). (Email from Plaintiff to Rebecca Vance, Jan 19, 2021 12:55 PM, Ex. [need exhibit]).
- **Delayed Acceptance:** Plaintiff notes his documents were "not even being accepted until the next day," despite trying for a week, and attributes this to "covid… regulations changing we nicer hd court." (User statement). This further compounded efforts to address the AOB claim.
- **Judge Wetzel's Involvement & AOB Loss:** Judge Wetzel (who Plaintiff alleges "knew the attorney or something") presided over the AOB case. The AOB valued at **$111,943.56** was "spoiled" and lost due to fraudulent interference by heirs and attorneys (Joseph McDonald, Brook Wood), and Plaintiff was prevented from attending crucial legal proceedings related to the AOB due to false arrest. (SAC, ECF No. 13, p. 4; user statement; ECF No. 35-14, p. 2, stating "The underlying controversy arises from a false arrest that has caused Plaintiff extensive collateral harm… the wrongful loss of an Irrevocable Assignment of Benefits… and the dismissal of a counterclaim…").

VI. Deliberate Procedural Obstruction & Abuse of Power - Recurring Pattern

- **Consistent Claim:** My core claims have never changed; they have been "jerked around by defendants all over the place" since day one. (User statement).

- **Systemic Problem:** The system itself is "fucked" and its requirements have turned "something bad into something catastrophic." (User statement). This is not true law but "organized extortion." (User statement; ECF No. 13, p. 160).
- **Ninth Amendment Framework:** The Ninth Amendment is about protecting "retained rights" by restricting the government's ability to draft or apply laws/procedures in a way that "crushes" or "suffocates" those rights, as has been done to me today. (User statement).
- **Lack of Guidance:** Defendants/Court staff never clearly stated "what you did wrong, where to look, what the rules are, what law or rule book governed," making compliance impossible for a pro se litigant. (User statement).

VII. Specific Examples of Intentional Delay & Obstruction (Citing Documents & Narrative):

1. **WLPD Trial Delays (West Linn/Gunnarson/Blyth):**
    - WLPD defendants "pushed everything back" by scheduling trial dates during Catlin Blyth's FMLA leave (Jan 9, 2024 trial to March/April/May 2024 per ECF No. 35-1, p. 1), and then for Attorney Stabler's paternity leave. (User statement; ECF No. 35-1, p. 1).
    - Plaintiff notes he was "ahead every time" and took flights "twice" for hearings that were then canceled. (User statement).
2. **Clackamas County/DA Evasion:**
    - Clackamas County and DA Portlock "didn't show up" in state court even though served "over 20 times." (User statement; ECF No. 35-4, entries for service on various dates showing "Unserved" or "Returned").
    - Mail sent to Clackamas County Sheriff, Jail, and DA's office (including DA Portlock) was "RETURNED" to sender, marked "RS," despite being properly weighed. (ECF No. 13, p. 105; user statement). This was the DA's office in the "same building" as the courthouse. (ECF No. 13, p. 105).
    - Plaintiff filed a Motion to Compel on **April 4, 2023**, and defendants (County) never showed up, despite being served. (ECF No. 35-4, p. 3, entry for 04/04/2023).
3. **DDA Portlock's Malice & Withheld Evidence:**

- Portlock's counsel stated she has "the right to not give evidence and be malicious" and prosecute "as malicious as she needs to be" even without a victim statement. (User statement - this would need to be directly quoted from a transcript/document for court).
- Portlock prosecuted a charge with an asterisk (*) next to the statute, indicating a "wild card," implying lack of legal basis. (User statement).
- The victim, Macy, called Portlock a "liar" in court and stated Plaintiff "committed no crimes." (SAC ECF No. 38, p. 20; ECF No. 35-11, p. 3).
- Portlock leveraged Macy's children's custody until Macy "left the county." (SAC ECF No. 38, p. 20).

4. **West Linn Officers' Fabrications & Withheld Photos:**
    - Officers Dana Gunnarson and Catlin Blyth twisted facts, including photos of Macy with a hammer and hose, claiming I was "reaching for a hammer" when I was defending myself. They excluded all mention of Macy's 3-day destruction from reports. (SAC, ECF No. 13, ¶¶ 49-50, 73; user statement). These pictures were "withheld." (User statement).
    - Officers did a domestic violence survey on Macy and knew she "didn't even qualify." (SAC, ECF No. 13, ¶ 74; user statement).
    - WLPD failed to stop Macy because she was a "black looking woman" (user statement), and Dana texted Macy's daughter to "cause more issues" ("helping"). (User statement).

VIII. Cumulative Impact & Denial of Remedy:

- **"Pure Suffocation of AOB":** The continuous delays and denials led to the "pure suffocation" of my AOB claim. I used my retirement to cover costs

between defendant actions and your hardships/procedural obstacles. No fluff, just concise bullet points.

Notes on Plaintiff's Story & Defendants' Intentional/Elusive Acts:

- **Initial Property Destruction & Police Inaction (March 4-6, 2022 - West Linn, Officers Gunnarson & Blyth):**
    - Macy Galla engaged in 3 days of property destruction (hammering windows, hosing/flouring belongings, tipping fridge, cutting power/water/heat). Threatens arson with 5 gallons gasoline. Officers aware. (SAC, ECF No. 13, ¶¶ 37-44, pp. 21-24).
    - Plaintiff called WLPD repeatedly for help. Officers arrived, witnessed destruction, had knowledge of Macy's threats, but took no protective action. (ECF No. 13, ¶¶ 38, 43, pp. 21, 23).
    - Officers did not secure Plaintiff's property (truck keys, work files withheld by Macy). Property left outside, later stolen/damaged. (ECF No. 13, ¶ 43, 55, pp. 23, 30).
- **Unlawful Arrest & Evidence Manipulation (March 6, 2022 - West Linn, Officers Gunnarson & Blyth):**
    - Officers Gunnarson & Blyth arrested Plaintiff within **8 minutes** of arrival on March 6, 2022, without thorough investigation or probable cause. (ECF No. 13, ¶ 45, p. 24; SAC ECF No. 38, p. 31).
    - Officers ignored exculpatory evidence: Plaintiff's prior calls, Macy's aggression (hammer/hose/flour), photographs of Macy with hammer/gloves. (ECF No. 13, ¶¶ 45-50, pp. 24-27; SAC ECF No. 38, p. 31; ECF No. 35-14, p. 5 where Plaintiff states "Officer Blyth indicated to Defendant Dana Gunnarson Plaintiff didn't meet the elements of Harassment. Dana then went to Macy stating they needed to '' Intentional Creation of Hardship & Procedural Barriers:**

1. **False Arrest & Property Neglect (March 4-6, 2022 - West Linn PD/Gunnarson/Blyth):**
    - **Macy's Destructive Acts:** Macy Galla, for 3 days (March 4-6, 2022), broke windows, sprayed hose indoors, poured 30lbs flour on belongings, tipped fridge, cut utilities (heat/water/power in freezing temps), threatened arson with 5 gallons gas she bought. Officers were *aware* of threats/destruction. (SAC, ECF No. 13, ¶¶ 37-44).
    - **Officer Inaction/Coaching:** Despite my calls for help and Macy holding my keys/files (preventing my departure), WLPD Officers Gunnarson and Blyth *did*

nothing to intervene. Instead, they *coached* Macy on how to circumvent eviction. (SAC, ECF No. 13, ¶¶ 39, 41-43).

- **Rushed, Biased Arrest (March 6, 2022):** Officers arrested me within **8 minutes** of arrival, without investigation, despite clear exculpatory evidence. (SAC, ECF No. 13, ¶ 45).
- **Evidence Manipulation/Withholding (West Linn):**
  - Officers twisted my words and Macy's account, fabricating a narrative for arrest. (SAC, ECF No. 13, ¶¶ 46-49).
  - They *knew* Macy had a hammer and hose (pictures available), but withheld this exculpatory evidence. (SAC, ECF No. 13, ¶¶ 90, 122).
  - Blyth searched "harassment" criteria on computer, then said to Dana "we need another incident" to justify charges. (User statement).
  - WLPD **changed their body camera policy** after my lawsuit was filed (post-2022 denial letters, user statement) to hide footage previously subject to policy (user statement). This footage was initially blocked by DHS seal. (SAC, ECF No. 13, ¶ 66, 67; ECF No. 35-14, p.4). My requests for body camera footage were denied **14 times in jail**. (SAC, ECF No. 13, ¶ 66).
- **Property Abandonment:** Officers left my property (truck, tools, electronics) unsecured and unprotected on the side of the road, leading to theft/destruction, despite assurances it would be secured. This caused hyperthermia upon my release. (SAC, ECF No. 13, ¶ 55; user statement).

2. **Malicious Prosecution & Collusion (DDA Portlock/Medina/Judge Steele):**
   - **Continued Prosecution Without Basis:** DDA Portlock continued prosecution despite Macy Galla (the State's sole witness) recanting in court on **June 24, 2022**, stating "Plaintiff broke no laws" and accusing the DA of lying. (SAC, ECF No. 13, ¶¶ 50, 52; ECF No. 35-11, p. 3). My initial charge had an asterisk next to the statute, a "wild card," implying no specific crime. (User statement).
   - **COVID Lie & Trial Delay (June 10, 2022):** DDA Portlock, my court-appointed advisor Ruben Medina, and Judge Steele allegedly colluded to falsely claim I had COVID-19 to delay my trial by **six weeks**. This was caught on court audio. (SAC, ECF No. 13, ¶¶ 58, 62; ECF No. 35-14, p.3). Judge Steele knew I didn't

have COVID and called out Portlock/Medina's lies. (SAC, ECF No. 13, ¶ 167, p.109). They then made me travel to court multiple times, only to cancel. (User statement).

- **Witness Tampering:** Portlock leveraged Macy's children's custody to coerce her testimony, causing Macy to leave the county. (SAC, ECF No. 13, ¶ 63; ECF No. 35-14, p.3).
- **DDA's Stated Intent:** DDA's counsel stated she had the right to be malicious and hold evidence, even without a victim statement. (User statement - this would need to be in a declaration/transcript to be evidence).

3. **Weaponized Incarceration & Access Denial (Clackamas County Jail/Sheriff/Heidi Wooster):**
   - **Property & ID Loss:** My remaining property was abandoned by WLPD (causing ID loss) and later stolen/destroyed while incarcerated. (SAC, ECF No. 13, ¶ 55; Emails with Court Clerk, May 22, 2024, Ex. [Emails to be attached]). This made it impossible to enter the courthouse. (User statement).
   - **Law Library/Legal File Obstruction:**
     - Sgt. Heidi Wooster and jail staff systematically denied access to legal resources and the law library from March to July 2022. (SAC, ECF No. 13, ¶ 157, 181, 240, pp. 105, 114).
     - Guard "Baker" or "Alan" **deleted 62 of my court files** from the law library computer on **June 20, 2022**. (SAC, ECF No. 13, ¶ 58, 180).
     - I was told the law library was *only* for my criminal action. (User statement).
   - **Deliberate COVID Exposure:** Jail staff intentionally housed me with COVID-positive inmates from May 24-27, 2022, causing me to contract the virus. (SAC, ECF No. 13, ¶¶ 45-46, 171). They knew I had it by May 28th, but still moved me to a different bunk on May 29th, and I refused to move again on May 30th to an open bunk. (User statement). My jail report only has 15 days of COVID noted. (User statement).
   - **Unlawful Detention (July 1-8, 2022):** Despite a court order for my release on **July 1, 2022**, Clackamas County Jail unlawfully held me for an additional week without legal justification. (SAC, ECF No. 13, ¶¶ 52, 71, 108, 187).

II. Defendants' Active Delays & Procedural Manipulation:

1. **State Court Delays (West Linn Defendants):**
    - West Linn Defendants caused significant delays in my state case (22CV39627) by moving everything back. This included scheduling trial dates during Catlin Blyth's FMLA leave for a baby and then William Stabler's own leave. (Motion to Setover Trial Date, Doc 36, p. 1; user statement).
    - I was **ahead of schedule** every time, not causing delays. (User statement).
    - I took flights multiple times, and they cancelled hearings after I arrived. (User statement).
2. **FOIA Obstruction & Exorbitant Fees (L. Sam Dupree/Judge Wetzel's Clerk):**
    - My FOIA requests for body camera footage saw fees increase from $25 to $150, then $300, and finally $650. (Emails with Dupree, user statement).
    - Judge Wetzel's clerk (L. Sam Dupree) was involved in this. (Emails, user statement). This is part of the systemic obstruction of justice.
3. **Returned Mail from Clackamas County Offices:**
    - Documents I sent via U.S. Mail with correct postage/weight to Clackamas County Sheriff's Office, Clackamas County Jail, and the District Attorney's office were **returned to sender ("RS") unopened**, while others (West Linn, State of Oregon) received theirs. (SAC, ECF No. 13, p. 79, 105; image of returned envelopes, user statement). This was after I attempted to get the court to process/stamp mail for service. (User statement).

III. Systemic Undermining of Justice & Plaintiff's Constitutional Rights:

1. **Loss of AOB & Financial Ruin:** My Assignment of Benefits (AOB), worth over **$100,000**, was "spoiled" and lost because Clackamas County Jail and Heidi Wooster denied me access to legal resources. (SAC, ECF No. 13, ¶¶ 61, 117-120, 158; user statement). I used my retirement to cover costs. (User statement).
2. **Countersuit & Undertaking of Costs:** I was then countersued for **$32,599.50** for trying to sue them. (SAC, ECF No. 13, ¶ 70; user statement). Clackamas County refused to waive the "undertaking" (cost bond), which I could not cover, leading to the eventual dismissal of my AOB claims by the Supreme Court without me ever having my day in court on the merits. (User statement).

3. **Judicial & Legal Collusion:** Judges, DDA Portlock, and my appointed advisor (Ruben Medina) allegedly colluded in bad faith, making and backing out of deals, twisting my words, and intentionally using procedural maneuvers to deny me justice. (SAC, ECF No. 13, ¶¶ 56-57, 62-64, 70, 73-75, 167-172, 175). My appointed counsel allegedly withheld exculpatory evidence. (SAC,get another incident.'").
    - Officers twisted Plaintiff's words, fabricated narrative, and omitted facts in reports to justify arrest. (ECF No. 13, ¶¶ 49-51, pp. 27-28).
    - Macy Galla, the State's witness, was found with **methamphetamine at the courthouse on March 7th** (arraignment), yet was deemed credible despite mental instability. (ECF No. 13, ¶ 48, 121, pp. 26, 82).

- **Malicious Prosecution & Collusion (June 2022 - DDA Portlock, Ruben Medina, Judge Steele):**
    - DDA Portlock continued prosecution despite Macy's recantation on **June 24, 2022**, where Macy stated Plaintiff "broke no laws" on the record. (SAC ECF No. 38, p. 20).
    - **June 10, 2022:** DDA Portlock, court-appointed advisor Ruben Medina, and Judge Steele allegedly colluded to falsely claim Plaintiff had COVID-19 to delay trial. (ECF No. 13, ¶ 62, p. 32; SAC ECF No. 38, p. 20; ECF No. 35-14, p. 3).
    - Court audio allegedly captures this false representation. (ECF No. 13, ¶ 167, p. 109). Judge Steele knew Plaintiff did not have COVID but allegedly proceeded with the delay. (ECF No. 13, ¶ 167, p. 109).
    - Plaintiff alleges advisor Ruben Medina conspired, withheld exculpatory evidence, and accepted deals without Plaintiff's informed consent. (ECF No. 13, ¶¶ 53, 62, 164, pp. 29, 32, 71; ECF No. 35-14, pp. 2-3).
- **Evidence Suppression & Manipulation (Ongoing - DDA Portlock, WLPD, DHS):**
    - DDA Portlock allegedly suppressed exculpatory evidence, including WLPD body camera footage showing Macy's aggressive actions. (ECF No. 13, ¶¶ 49, 66, pp. 27, 35).
    - WLPD allegedly changed its body camera policy after Plaintiff filed his lawsuit, specifically to block access to footage. (ECF No. 13, ¶ 68, p. 36; ECF No. 35-14, p. 5 where Plaintiff states WLPD "revised its policy at the end of 2022" after his claims).

    - Body camera footage, dating back to at least 2016, contradicts defendants' assertions. (ECF No. 35-14, p. 5).
    - Plaintiff denied body camera footage on **14 separate jail requests**. DDA Portlock allegedly hid evidence behind a DHS seal, where only she has release authority. (SAC ECF No. 38, p. 21).
- **Weaponized Incarceration & Property Loss (March - July 2022 - Clackamas County Jail/Sheriff, Sgt. Heidi Wooster):**
    - Plaintiff was deliberately placed with COVID-positive inmates, contracted COVID-19 (May 28, 2022), and jail staff allegedly deleted medical records. (ECF No. 13, ¶¶ 45-46, pp. 20, 22; SAC ECF No. 38, p. 22). Housing records allegedly confirm COVID on May 28, 2022. (SAC ECF No. 38, p. 22).
    - Denied prescription eyewear (-11.00/-12.00 vision) throughout detention despite repeated requests, causing eye infection and inability to participate in defense. (ECF No. 13, ¶ 47, 78, pp. 20, 30; SAC ECF No. 38, p. 21).
    - Jail staff, including Sgt. Heidi Wooster, allegedly deleted **62 of Plaintiff's legal files** from law library computer on **June 20, 2022, at 5:10 PM**. (ECF No. 13, ¶ 58, p. 31; ECF No. 35-14, p. 10).
    - Denied law library access for up to **9 consecutive days**, despite numerous requests. (ECF No. 13, ¶ 60, p. 31; ECF No. 35-14, p. 8).
    - Unlawfully detained for an additional week (July 1-8, 2022) *after* court ordered release on July 1, 2022. Jail had release documents. (ECF No. 13, ¶ 52, p. 29; SAC ECF No. 38, p. 24).
    - Property left on roadside by WLPD was pillaged. (ECF No. 13, ¶ 55, p. 30; ECF No. 35-14, p. 9). Plaintiff alleges this caused lack of ID, preventing courthouse entry. (Emails with Eric Oss, May 22, 2024, Ex. [need exhibit for emails]).
- **Financial Ruin & Denial of Remedy:**
    - Loss of Assignment of Benefits (AOB) valued at

111,943.56anda**111,943.56****anda***

32,599.50 counterclaim dismissed, both due to defendants' interference and obstruction. (ECF No. 13, p. 4, 10; ECF No. 35-14, p. 2; SAC ECF No. 38, pp. 25, 53).

    - WLPD counsel pushed trial back due to "newborns" (Nov 2, 2023 motion seeking setover to March/April/May 2024). (ECF No. 35-1, p. 1). Plaintiff objected. (ECF No. 35-1, p. 1).
    - Plaintiff fought AOB loss to Supreme Court, but claim was dismissed because Plaintiff couldn't cover the "undertaking of costs" and Clackamas County wouldn't waive it, denying a day in court. (Plaintiff's narrative; ECF No. 35-14, p. 4 where Plaintiff states "ended with the Supreme Court, with out the financial ability to print the 10 copies of my Writ of Certiorari").
    - FOIA request costs from $25 to $650, delayed for a year, handled by L. Sam Dupree (OJD, Judicial Clerk for Judge Wetzel who handled Plaintiff's AOB case). (Emails with L. Sam Dupree, Aug 7, 2024 - Jan 31, 2025, Ex. [need exhibit for emails]). Dupree denied fee waiver, citing "private concern." (Emails with L. Sam Dupree, Jan 31, 2025, Ex. [need exhibit for emails]).
- **Systemic Corruption & Denial of Access to Justice:**
    - Clackamas County Sheriff's Office and District Attorney's refusal to hold heirs accountable for **fiduciary fraud in 2021**. (ECF No. 13, ¶ 210, p. 127).
    - Clackamas County Commissioner allegedly in prison for fraud. (Plaintiff's narrative, to be verified).
    - Documents sent to Clackamas County government offices (Sheriff, Jail, DA) were **returned unopened, marked "RS,"** despite being properly weighed and other defendants (WLPD, State of Oregon) receiving their mail. (ECF No. 13, p. 105).
    - Plaintiff alleges being "systematically blocked from filing claims by multiple procedural barriers, including in-person filing denials, PACER rejections, and dismissals based on technicalities." (ECF No. 14, p. 4).
    - Plaintiff was "turned down bringing paper copies in because my not having an ID because i was false arrested and they left everything on the side of the road and it was pillaged." (Email to Eric Oss, May 22, 2024, Ex. __).
    - West Linn Defendants pushed trial date for Catlin Blyth's FMLA (Nov 2, 2023 motion for setover from Jan 9, 2024 to March/April/May 2024). (ECF No. 35-1, p.1). Then for attorney's paternity leave. Plaintiff objected. This caused him to miss appearances. (ECF No. 35-1, p.1; Plaintiff's narrative).

- Plaintiff filed **Motion to Compel on April 4, 2023**, but County Defendants (Clackamas County Jail/Sheriff) did not show up despite being served. (State Court Register of Actions, ECF No. 35-4, p. 3, entry for 04/04/2023 "Proof - Service" followed by "Motion - Reconsider" & "Motion - Summary Judgment" on that date; "Motion - Summary Judgment" on 05/05/2023 leading to "Order - Denial" on 07 ECF No. 13, ¶ 53, 164).

1. **"Wild Card" Charge:** My criminal charge was listed with an asterisk (*), implying a "wild card" next to the statute, suggesting it lacked proper legal basis. (User statement).
2. **Denial of Access to Court/Pleadings:**
   - I was denied entry to the federal courthouse because I had no ID (which I lost due to my property being left on the roadside and stolen by West Linn officers). (Emails with Eric Oss, May 22, 2024, Ex. __; user statement).
   - My initial federal complaint package, including thumb drives, was rejected for filing by the court clerk's office because they required paper copies, which I couldn't deliver due to lack of ID/access. (Emails with Eric Oss, May 22, 2024, Ex. __).
   - My initial federal complaint was split into multiple claims despite my intent for one consolidated claim because I lacked online access to file the necessary protections fast enough. (User statement).
   - All defendants have online access to the files and videos. (User statement).
3. **"Organized Extortion" & Systemic Injustice:** The entire system, through these deliberate delays, procedural obfuscations, and intentional denials of access and evidence, constitutes "organized extortion" designed to "strip citizens of their rights and ruin lives." (ECF No. 13, pp. 57, 160; user statement). This is not law; it's designed to make people give up.

Notes: Initial Federal Case Filing, Hurdles, and Consolidation Efforts

I. Initial Federal Filing Attempts & Immediate Obstacles (May 2024 - Documented in Emails & ECF 11, 13, 14, 17)

- **Plaintiff's Physical Barriers:** Due to previous alleged actions by West Linn officers (false arrest, property left on roadside), Plaintiff was left without ID, rendering him unable to physically enter the federal courthouse to file his initial complaint and seek assistance. (Emails with Eric Oss, May 22, 2024, Ex. [needs exhibit]; ECF No.

11, p. 4, stating "lost my ID due to the actions of the State of Oregon, therefore I cannot personally come inside").

- **Court Filing Rejections:** Plaintiff's initial attempt to file his complaint via mail, including thumb drives for defendants' copies and waivers, was rejected by the Court Clerk's Office on **May 22, 2024**. The Clerk required paper copies for initial filing, a standard Plaintiff was physically barred from meeting. (Email from Eric Oss to Plaintiff, May 22, 2024, stating "We received what you sent, but it cannot be accepted for filing. Please submit paper copies...").
- **Concerns about Statute of Limitations:** Plaintiff explicitly communicated fear of losing claims due to imminent SOL deadlines to the Court Clerk. (Email to Eric Oss, May 22, 2024, stating "My concern is the statute of limitations will be up here in a matter of days...").
- **Attempted Consolidation:** Plaintiff attempted to submit a single, consolidated complaint (e.g., "LOFALL TRUE COPY COMPLAINT turnin.pdf," "COMPLAINT C," "Complaint A," "Complaint B") aiming for one unified case. (Image of envelopes; ECF No. 13, p. 1 - FAC cover stating "Consolidated Complaint"; ECF No. 14, p. 2, stating "consolidated amended complaint, which merges claims from two prior complaints into a single unified case").

II. Federal Court's Initial Dismissal & Claim Splitting (July-August 2024 - ECF 11, 12)

- **Initial Dismissal of Complaint:** The federal court issued Findings and Recommendation (F&R) recommending dismissal of Plaintiff's original complaint on **July 15, 2024**. (ECF No. 12, p. 1).
- **Dismissal Before CM/ECF Access:** This dismissal occurred *before* Plaintiff was granted CM/ECF access, which allegedly prevented him from filing necessary motions (e.g., motion to exercise jurisdiction over all claims, motion to withdraw state claim) to properly manage the federal case or dismiss the state case contingent on federal acceptance. (Plaintiff's narrative; ECF No. 11, p. 1, listing desired motions; ECF No. 17, p. 5, stating "failure to grant relief based on procedural grounds has compounded the harm").
- **Court Allegedly Split Claims:** Despite Plaintiff's attempt to file a single consolidated complaint, the court allegedly split the claims, complicating the initial filing process and subsequent litigation. (Plaintiff's narrative).

III. Plaintiff's Persistent Efforts to Re-Consolidate & Address Procedural Issues (Sept-Oct 2024 - ECF 13, 14, 17)

- **Timely Objections:** Plaintiff filed timely objections to the F&R on **July 29, 2024**, explicitly stating intent to file an Amended Complaint, a motion for equitable tolling, and a motion to exercise jurisdiction. (ECF No. 11, p. 1).
- **First Amended Complaint (FAC):** Plaintiff filed his FAC on **September 9, 2024**, slightly outside the 30-day limit but demonstrating continued diligence. This FAC also included defendants beyond the narrow scope of ECF No. 12's initial leave to amend. (ECF No. 13; ECF No. 12, p. 2).
- **Formal Notice to Court:** Plaintiff immediately filed a "Notice to the Court" on **September 12, 2024**, reiterating a request for equitable tolling, citing "significant delays caused by both state and federal (court) procedural barriers" and "Plaintiff's legal blindness and the lack of ADA accommodations." (ECF No. 14, p. 2, 4-5). This demonstrated proactive notification of ongoing procedural difficulties.
- **Motion for Leave to File Second Amended Complaint (SAC):** After the Court reportedly ordered no further amendments without leave (ECF No. 16), Plaintiff filed a formal Motion for Leave to File SAC on **October 9, 2024**. (ECF No. 17).
    - **Explicit Justification for Leave:** This motion explicitly stated the SAC should relate back to May 2024 due to "procedural hurdles outside of Plaintiff's control—including being denied access to file due to lack of ID, having documents rejected when submitted on a thumb drive, and administrative delays caused by systemic obstacles—equitable tolling and relation back are appropriate to preserve Plaintiff's claims." (ECF No. 17, p. 2).

IV. Defendants' Alleged Intentional/Elusive Acts Causing Hardship:

- **West Linn PD's State Court Delays:** West Linn Defendants repeatedly caused delays in state court, notably by scheduling trial dates around Catlin Blyth's FMLA leave (Jan 9, 2024 trial to March/April/May 2024). (Motion to Setover Trial Date, ECF No. 35-1, p. 1). Plaintiff objected to these postponements. (ECF No. 35-1, p. 1).
- **West Linn "Pushed Everything Back":** Plaintiff consistently states he was "ahead every time" but West Linn pushed everything back, including two canceled hearings after he took flights. (Plaintiff's narrative).
- **Clackamas County/DA's Failure to Appear/Return Mail:** Clackamas County and DA Portlock did not show up in state court despite "served 20 times." (Plaintiff's narrative). Specifically, documents sent via mail to Clackamas County Sheriff, Jail, and DA's office were "RETURNED AND THE LETTERS... WERE RETURNED" despite

being properly weighed and other defendants receiving theirs. (ECF No. 13, p. 105, 79). This directly impedes notice.

- **FOIA Cost Escalation & Obstruction:** L. Sam Dupree (Oregon Judicial Department, Judicial Clerk for Judge Wetzel who oversaw AOB case) handled Plaintiff's FOIA requests. Fees dramatically increased ($25 to $650) over a year, and Dupree ultimately denied a fee waiver, labeling Plaintiff's public interest request as a "private concern." (Emails with Dupree, Ex. [need exhibit]). Dupree also stated OJD lacked body cam footage and Portlock records, directing Plaintiff elsewhere. (Emails with Dupree, Ex. [need exhibit]).
- **Collusion & Fraud:** Allegations of DDA Portlock, Ruben Medina, and Judge Steele colluding to manipulate court proceedings, lie about COVID-19 status, and back out of deals. (SAC, ECF No. 13, ¶¶ 58, 62, 70, 73-75; ECF No. 35-14, p. 2-3).
- **Body Camera Footage Withheld:** WLPD's body camera footage (March 4-6, 2022) was withheld/locked behind DHS seal, despite 14 requests and Plaintiff's counsel asking for its preservation. WLPD then changed policy post-lawsuit to appear to be starting body cam usage. (SAC, ECF No. 13, ¶ 66; ECF No. 35-14, p. 4).
- **State Court Motion to Compel:** Plaintiff filed a motion to compel on **April 4, 2023**, and defendants never showed up despite being served. (State Court Register of Actions, ECF No. 35-4, p. 3, entry for 04/04/2023 "Motion - Reconsider" & "Motion - Summary Judgment").
- **"Wild Card" Charge:** The criminal charge against Plaintiff was listed with an asterisk (*), implying a "wild card," indicating a lack of proper legal basis from the start. (Plaintiff's narrative).
- **Deliberate Mixing/Hiding of Evidence:** Defendants are "scrambling my evidence and delay," "stopped me from presenting the case in state," and hiding "evidence that made me move that they created." (Plaintiff's narrative)
- **Countersuit & Undertaking Costs:** I was countersued for **$32,599.50**, and Clackamas County "wouldn't waive" the undertaking (cost bond), which I couldn't cover, leading to Supreme Court dismissal without a day in court. (User statement).
- **"Hiding or mixing everything up in a big fuck fest":** Defendants are "scrambling my evidence and delay," "stopped me from presenting the case in state." (User statement). The procedural complexity is intentionally designed to obscure the truth. (User statement).
- **"Organized Extortion":** This system is "organized extortion," where rights don't matter, and government entities "arrest and take whatever they want." (User statement).

- **"No ID, struggling to draft 200 documents":** My homelessness, lack of ID, and constant struggle to operate computers/draft documents under duress highlight the extreme, ongoing hardship imposed by defendants' actions. (User statement).

Understood. Taking notes directly, concisely, and with precision on dates, facts, delays, rules, and alleged intentional/elusive acts. No fluff.

Notes: Documented Intentional Delays & Obstruction

I. West Linn Police Department's Obstruction & Evidence Withholding (2023-2025)

- **FOIA Request Denial (Jan 28, 2023):** Plaintiff submitted a Public Records Request for "Arrest reports of Catlin Blyth and Dana Gunnarson and the Body/Car Camera" from March 6, 2022. (Email from City of West Linn, Jan 28, 2023).
- **Direct Denial of Body Camera Existence (Jan 30, 2023):** Joella Sorensen (WLPD Records Specialist) replied: "the West Linn Police Department does not have body or car cameras. Please review the attached exemption letter." (Email from Joella Sorensen, Jan 30, 2023).
    - **Plaintiff's Contention:** This directly contradicts Plaintiff's evidence (and his initial arguments) that WLPD officers wore body cameras and that footage was taken. (ECF No. 13, ¶ 66, p. 35; ECF No. 35-14, p. 5, stating "Plaintiff has independently retrieved body camera footage dating back to at least 2016...").
    - **Exemption Letter:** The attached "22-001665 EXEMPT LETTER - Tyler Lofall.pdf" lists various ORS exemptions (e.g., investigatory information, pending prosecution) for the *arrest reports*, but the direct statement "does not have body or car cameras" is a factual denial about existence of the footage itself.
- **Withholding of Footage/Policy Change:** Plaintiff alleges WLPD changed policy *after* he filed suit (post-2022) to block access to body camera footage that would "end the claim instantly" and implicate officers'/attorneys' careers. This footage is allegedly hidden behind a DHS seal. (ECF No. 13, p. 36; SAC ECF No. 38, p. 21).

II. Oregon Judicial Department's FOIA Obstruction & Fee Escalation (2024-2025)

- **FOIA Request for Collusion Evidence (Aug 7, 2024):** Plaintiff sent a FOIA request to L. Sam Dupree (OJD, Senior Assistant General Counsel) seeking internal court

emails (Medina/Steele, Medina/Portlock), and all OJD records referencing Rebecca Portlock and Plaintiff's cases. (Email from Plaintiff to L.S. Dupree, Aug 7, 2024). Plaintiff cites "systemic corruption… that demonstrably wrecked my AOB case and fabricated criminal proceedings" as public interest. (Email from Plaintiff to L.S. Dupree, Jan 31, 2025, p. 29).

- **FOIA Fee Escalation & Denial of Waiver:** The cost for FOIA requests dramatically increased from **$25.00 to $150.00, then $300.00, then $650.00**, taking "a year" to get back to Plaintiff. (Email to Judge Wetzel and Clackamas Intern, Jan 8, 2025, p. 1). L. Sam Dupree denied a fee waiver, stating Plaintiff's request was "a concern or interest of a private individual" not public interest. (Email from L.S. Dupree, Jan 30, 2025, p. 14).
    - **Plaintiff's Contention:** This fee denial is "transparent misdirection" and ethically questionable given the alleged systemic corruption and financial devastation Plaintiff suffered. (Email from Plaintiff to L.S. Dupree, Jan 31, 2025, p. 29).
- **Denial of Access to Records - "Separate Entities" Justification:** L. Sam Dupree refused to provide records concerning Rebecca Portlock, the DA's office, Clackamas County, West Linn PD, or Ruben Medina, stating OJD "does not have access to the internal records of those entities" as they are "separate entities" and not court employees. (Email from L.S. Dupree, Jan 30, 2025, pp. 16-17, 32).
    - **Plaintiff's Contention:** This highlights how the fragmented system, despite alleged interconnected collusion, actively obstructs comprehensive discovery.

III. State Court Procedural Manipulation & Delays (West Linn & Clackamas County)

- **WLPD Trial Rescheduling (Nov 2, 2023):** West Linn Defendants (William E. Stabler) requested postponement of trial date (Jan 9, 2024) due to Catlin Blyth's FMLA leave. They proposed new dates in March, April, or May 2024. (Doc 35-1, p. 1).
    - **Plaintiff's Contention:** Plaintiff states he was "ahead every time," yet West Linn pushed everything back, including scheduling during Blyth's and Stabler's own paternity leaves, causing 2 canceled hearings after Plaintiff took flights. (Plaintiff's narrative; ECF No. 35-14, p. 8, Part L).
- **Clackamas County / DA Failure to Appear/Return Mail:**

    - Clackamas County Defendants (including DA Portlock) "didn't show up in court even though served 20 times." (Plaintiff's narrative; ECF No. 35-4 shows various "Unserved" or "Returned" service attempts for County/DA entities).
    - Mail sent via U.S. Mail to Clackamas County Sheriff's Office, Jail, and DA's office was "RETURNED AND THE LETTERS... WERE RETURNED," marked "RS," despite being properly weighed and posted. (ECF No. 13, p. 79, 105). This contrasts with WLPD and State of Oregon receiving their mail.
- **Motion to Compel Ignored (April 4, 2023):** Plaintiff filed a Motion to Compel discovery, but County Defendants (Clackamas County Jail/Sheriff) "never showed up" despite being served. (ECF No. 35-4, p. 3, entry for 04/04/2023 "Motion - Reconsider" & "Motion - Summary Judgment").

IV. Direct Links to Plaintiff's Hardships & Denial of Remedy:

- **ID Loss & Courthouse Access:** Plaintiff was "turned down bringing paper copies in because my not having an ID because i was false arrested and they left everything on the side of the road and it was pillaged." This directly prevented physical courthouse access. (Email from Plaintiff to Eric Oss, May 22, 2024).
- **AOB Loss & Financial Ruin:** The AOB, worth over $100,000, was "spoiled" due to false arrest/incarceration and continuous obstruction (denial of legal access by Jail, e.g., Heidi Wooster). This forced Plaintiff to use retirement to cover costs, leading to financial ruin. (ECF No. 13, p. 4, ¶ 2, 117-120; ECF No. 35-14, p. 2, Part K).
- **Countersuit & Undertaking Costs:** Plaintiff was countersued for $32,599.50 for trying to sue them. Clackamas County refused to waive the undertaking (cost bond), which Plaintiff could not cover, leading to Supreme Court dismissal without a trial on the merits. (Plaintiff's narrative).
- **Systemic Injustice:** This "broken system" is "organized extortion," intentionally designed to exhaust and "crush" individuals like Plaintiff by weaponizing procedural errors and denying remedies. (Plaintiff's narrative; ECF No. 13, pp. 57, 160).